

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
NATHANIEL OWENS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and RAFAEL TATIS,

Defendants.
-----X

Index No.

Date Filed:

Plaintiff designates: Queens
County as the place of trial

The basis of venue is:
Location of accident

S U M M O N S

Location of accident:
75-20 Astoria Boulevard,
East Elmhurst, New York 11370

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 4, 2022

REDMOND LAW FIRM PLLC

By: 
Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path

New York, New York 10038

RAFAEL TATIS (Place of Employment)

1 Police Plaza Path

New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
NATHANIEL OWENS,

Index No.

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and RAFAEL TATIS,Defendants.
-----X

Plaintiff, by his attorneys, REDMOND LAW FIRM PLLC complaining of the defendants, all upon information and belief, respectfully states and alleges as follows:

1. At all times herein mentioned, plaintiff, NATHANIEL OWENS, was and still is a resident at 300 West 55th Street, Apartment# 8J, County of New York, City and State of New York.

2. That at all times herein mentioned, the occurrence that gave rise to this action occurred in the County of Queens, City of East Elmhurst and State of New York.

3. That upon information and belief, at all times herein mentioned, the defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation duly organized and existing under and by the virtues of the laws of the State of New York.

4. That upon information and belief, at all times herein mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), was and still is a municipal corporation duly organized and existing under and by the virtues of the laws of the State of New York.

5. That at all times herein mentioned, defendant, RAFAEL TATIS (hereinafter "TATIS"), was and still is a resident of the County of New York, City and State of New York.

6. That on August 17, 2019, and at all times herein mentioned, the defendant CITY operated NYPD and employed the officers of said department.

7. That on said date and at all times herein mentioned, the defendant, TATIS, was a police officer of NYPD.

8. At times mentioned herein, defendant TATIS an officer of NYPD was acting under the color of law, to wit: the laws, statues, ordinances, rules and regulations of the City of New York, State of New York, the United States and the Constitutions of the State of New York and United States.

9. Upon information and belief, on August 17, 2019, at approximately 12:00 pm and thereafter, defendant TATIS, intentionally, unlawfully, maliciously and wrongfully assaulted, battered, and kicked plaintiff in violation of the plaintiff's state and federal constitutional civil rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY
ON BEHALF OF PLAINTIFF NATHANIEL OWENS

10. Plaintiff NATHANIEL OWENS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-11 with the same force and effect as if fully set forth at length herein

11. That on August 17, 2019, at approximately 12:00 pm, and while in the custody of the defendants, the Plaintiff NATHANIEL OWENS was without just cause, probable cause or provocation, and with reckless and negligent, and without investigation assaulted, kicked and battered by defendant TATIS.

12. That on or about August 17, 2019, and while in the custody of the defendants the plaintiff NATHANIEL OWENS was intentionally physically attacked, kicked and battered, violated and humiliated, in the most egregious and excessive manner by defendant TATIS, who

was acting within the scope of his employment and authority in such a manner as to knowingly cause injury to plaintiff.

13. Defendant TATIS assaulted, kicked and battered plaintiff NATHANIEL OWENS, without any reasonable justification or lawful purpose.

14. That on or about August 17, 2019, TATIS, acting as an agent and on behalf of the CITY and NYPD within the scope of his employment, did intentionally, wilfully and maliciously physically attacked, kicked, assaulted and battered plaintiff NATHANIEL OWENS in the most egregious and excessive matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff NATHANIEL OWENS and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner assaulted the plaintiff and/or offensive bodily contact to the plaintiff NATHANIEL OWENS and caused mental and psychological injuries.

15. Upon information and belief, defendant TATIS acted pursuant to the NYPD continuing custom or practice of condoning NYPD's officers unjustified assaults, because he knew to a virtual certainty that they would not be disciplined for assaulting plaintiff NATHANIEL OWENS.

16. Upon information and belief, the defendant TATIS acted pursuant to the NYPD's continuing custom or practice of condoning NYPD's officers unjustified assaults while in jail and to penalize individuals for questioning their authority.

17. That by reason of the aforesaid intentional assault and battery which was committed without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or

reasonable cause, plaintiff NATHANIEL OWENS suffered great and permanent mental and psychological injuries and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

18. That as a result of the aforesaid assault and battery plaintiff NATHANIEL OWENS was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

19. That at all times hereinafter mentioned the actions of CITY, NYPD and TATIS as described above were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

20. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. That by reason of the foregoing, Plaintiff NATHANIEL OWENS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING/SUPERVISION/RETENTION ON BEHALF OF PLAINTIFF NATHANIEL
OWENS**

22. Plaintiff NATHANIEL OWENS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-21 with the same force and effect as if fully set forth at length herein.

23. That the defendants CITY and NYPD, their agents, servants and employees were negligent and careless and failed to exercise reasonable care and diligence in the hiring of the

officer who committed the aforementioned acts and deprivations on the plaintiff on the aforementioned dates and places, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting their employees including but not limited to defendant TATIS, in that said officer, as employee of defendants CITY and NYPD was not qualified to be hired or retained or promoted as officer, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that he was employed by defendants CITY and NYPD.

24. Prior to said date, and at all times herein mentioned, the defendant NYPD failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral, negligent and reckless.

25. Prior to said date, and at all times herein mentioned, the defendant NYPD failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the officer, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.

26. Prior to said date, and at all times here mentioned, the defendant NYPD had knowledge of facts about the officer it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above stated information about the employees and failed to do so.

27. That the defendants CITY, and NYPD failed to exercise due care and caution in their hiring, retaining, training and/or promoting practices in that defendants CITY, and NYPD

failed to adequately screen said officer, failed to adequately monitor said officer, and failed to adequately discipline said officer when they violate Police Department Guidelines.

28. That by reason of the above, the plaintiff NATHANIEL OWENS was injured in mind and body as he was assaulted, battered and rendered sick, sore and damaged.

29. That at all times hereinafter mentioned the actions of defendants CITY and NYPD were carried out in a reckless, deliberate, wilful, wanton, malicious and grossly negligent manner.

30. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

31. That by reason of the foregoing, plaintiff NATHANIEL OWENS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION FOR DEPRIVATION OF
CONSTITUTIONAL RIGHTS AND 42 U.S.C. 1983 ON BEHALF OF PLAINTIFF
NATHANIEL OWENS**

32. Plaintiff NATHANIEL OWENS repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-31 with the same force and effect as if fully set forth at length herein.

33. At all times mentioned herein and above, defendants CITY, and NYPD employed defendant TATIS as an officer and he was acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

34. Plaintiff NATHANIEL OWENS is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause

of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

35. That on or about August 17, 2019, defendant TATIS an employee of defendants CIT and NYPD without probable cause, reasonable cause or legal justification physically attack, kicked, assaulted and battered plaintiff NATHANIEL OWENS.

36. That on the aforementioned dates and places, the above actions of the defendant TATIS, acting within scope of his employment as an NYPD officer, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- i. Freedom from assault;
- ii. Freedom from battery;
- iii. Freedom from malicious prosecution;
- iv. Freedom from summary punishment;
- v. Freedom from cruel and unusual punishment;
- vi. Freedom from loss of liberty; and

37. In addition to the above, defendants CITY, and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct their officer, including the officers involved in this case and any and all unnamed officers involved in the physically attacking and battery of plaintiff, regarding the protection of the constitutional rights of citizens.

38. Defendants CITY, NYPD and TATIS, subjected plaintiff NATHANIEL OWENS to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard for plaintiff NATHANIEL OWENS's rights and with deliberate indifference to the United States Constitution.

39. The direct and proximate result of the defendants CITY, NYPD and TATIS acts are that plaintiff NATHANIEL OWENS has suffered severe and permanent injuries, forced to endure pain and suffering and emotional distress.

40. That by reason of the foregoing, Plaintiff NATHANIEL OWENS has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

CLAIM FOR PUNITIVE DAMAGES

41. The plaintiff makes a claim for punitive damages against the defendants in this action.

WHEREFORE, the plaintiff demands judgment in each cause of action against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, and in an amount which satisfies diversity jurisdiction of the Federal Courts pursuant to 28 USCA § 1441 and 1331, together with the costs and disbursements of this action.

Dated: New York, New York
February 4, 2022

REDMOND LAW FIRM PLLC

By: 

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

INDIVIDUAL VERIFICATION

STATE OF NEW YORK }
 } ss:
COUNTY OF NEW YORK }

NATHANIEL OWENS, being duly sworn, deposes and says:

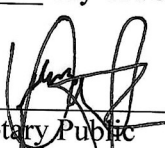
That I am the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.

By: 

NATHANIEL OWENS

Sworn to before me this
4th day of February, 2022


Notary Public

ORELMY DIAZ
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01D16405526
Qualified in Bronx County
Commission Expires 03/09/2024